

Factory Act 1948 — Section 41(b)

Statutory extract and plant applicability note | Safety, Health and Environment department

Regulation	Factory Act 1948	Clause	Section 41(b)
Obligation	monthly pressure vessel inspection	Frequency	Every 30 days (one month)
Applies to	V-201	Evidence required	Signed inspection report by a competent person

1. Statutory text

41(b). In every factory, every pressure vessel or plant used in any process shall be examined by a competent person at intervals not exceeding one month, and a record of every such examination, signed by the competent person and stating the condition of the vessel and any defect found, shall be maintained in the prescribed register and produced on demand to the Inspector.

2. Interpretation for this plant

The obligation is a monthly pressure vessel inspection: every pressure vessel in the factory must be examined by a competent person at intervals not exceeding 30 days, and the examination must be recorded in the prescribed register with the competent person's signature and a statement of the vessel's condition. An examination that is performed but not recorded does not discharge the obligation. A record without a signature does not discharge it either.

3. Applicable equipment

Tag	Description	Design pressure	Statutory class
V-201	Deaerator Storage Vessel V-201	8.5 barg	Pressure vessel — Section 41(b) applies
E-301	Feed Water Pre-Heater E-301	12 barg	Heat exchanger — examined under the same register at 12-month intervals

4. Evidence requirements

- Inspection report of type 'inspection_report', signed by the competent person.
- Date of examination and the condition of the vessel stated explicitly.
- Any defect found, and the action taken.
- The next examination date, not exceeding one month from the examination.
- Entry in Form 8 of the prescribed register, produced on demand to the Inspector.

5. Penalty for contravention

Section 92 — imprisonment for a term which may extend to two years, or a fine which may extend to Rs 1,00,000, or both; continuing contravention attracts a further fine of Rs 1,000 per day.

6. Plant compliance note

The last recorded statutory examination of V-201 on file is dated 2024-02-08, performed by S. Ramaswamy as the competent person. Against a 30-day obligation and a corpus reference date of 2024-06-30, the next examination fell due on 2024-02-08 plus one month and no subsequent record exists. The examination is therefore 113 days overdue.

Examination date	Competent person	Finding	Next due
2023-05-12	S. Ramaswamy	Shell thickness 11.7 mm. No defects.	2023-06-11
2023-08-14	S. Ramaswamy	No defects. PSV-2011 certificate current.	2023-09-13
2023-11-20	S. Ramaswamy	Minor pitting at the manway seat.	2023-12-20
2024-02-08	S. Ramaswamy	Shell thickness 11.6 mm against 12.0 mm nominal.	2024-03-09
Not recorded	-	No examination record after 2024-02-08.	OVERDUE

Note further that S. Ramaswamy, the only named competent person for this vessel on the current register, superannuates on 2024-11-30. Cover for the statutory examination must be nominated before that date.

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